

Bihari Lal (Deceased) v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 25 August 2015 · Writ-C No. 47757 of 2015 · **Writ disposed; representation to be decided in six weeks; no coercive action meantime.**

HEADNOTE

On a dispute over bills issued in the name of a deceased consumer, the Division Bench recorded an alternative remedy under clause 17.10 of the U.P. Electricity Supply Code, 2005 and, without examining merits, directed the Executive Engineer to decide the pending representation by a reasoned speaking order within six weeks, with no coercive action until that order was passed and communicated.

FACTUAL SUMMARY

Bihari Lal took a 1 kW connection in 1995 and died in 2009. Bills thereafter issued in the deceased's name. His son Girish Kumar filed the writ. The licensee said the heir had been told to apply for substitution of name but continued to consume electricity without mutation. The heir replied that the connection was permanently disconnected in 2000, so no dues accrued thereafter, and sought a decision on a representation pending before the Executive Engineer, Vidhyut Vitran Khand, Robertsganj, Sonbhadra.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::17.10

alternative-remedy

HOLDING

The Court recorded that the petitioner had an alternative remedy under clause 17.10 of the U.P. Electricity Supply Code, 2005. Without going into merits, and on an innocuous prayer, it disposed of the writ by directing the Executive Engineer (Prescribed Authority) to decide the pending representation by a reasoned speaking order preferably within six weeks, independently and as permissible in law, and directed that no action be taken against the petitioner until that order was passed and communicated. ¶ 1-2

FLAG Clause 17.10 is cited as the Supply Code alternative remedy; the order does not quote or construe the clause, and the ticket catalog has no matching 17.10 hit.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LIABILITY FOR DUES BILLED IN THE DECEASED CONSUMER'S NAME AFTER ALLEGED PERMANENT DISCONNECTION IN 2000, AND THE HEIR'S DUTY TO MUTATE THE CONNECTION

The Court expressly declined to examine the merits of the claim or the licensee's substitution and consumption defence. ¶ 1-2